KEY INDIVIDUALS
POTENTIAL CONFLICTS OF INTEREST
AND MATERIAL OMISSIONS

PREPA / Puerto Rico / PROMESA

Focused Evidentiary Report — August 2026

Executive Summary

This report focuses only on the named individuals whose prior financial-sector relationships, government positions, and roles touching Puerto Rico, PREPA, PROMESA, or the SEC investigative record create potential conflict-of-interest or material-omission questions.

The recurring issue is not that prior Wall Street employment proves misconduct. It does not. The issue is whether senior officials with substantial prior relationships to institutions or firms connected to Puerto Rico debt properly disclosed, recused from, or managed those relationships while making or supervising decisions affecting PREPA, Puerto Rico securities, PROMESA, enforcement, or disclosure to Congress.

The individuals examined are Charles Schumer, Jacob Lew, Antonio Weiss, Stephen Campbell, Adam Chepenik, Mary Jo White, Jay Clayton, and Gary Gensler. The report distinguishes documented relationships from unresolved questions requiring ethics records, recusal files, agency communications, congressional-preparation materials, and investigative records.

1. Charles E. Schumer

Documented relationship: Schumer was one of the Senate's largest recipients of financial-sector political support during the PROMESA period. Earlier research identified longstanding organizational donor concentrations associated with Goldman Sachs, Citigroup, and JPMorgan Chase.

Government/appointment role: Schumer personally introduced and strongly endorsed Jacob Lew at Lew's 2013 Treasury confirmation hearing, describing Lew as a friend of roughly three decades. Schumer also formally introduced Mary Jo White at her 2013 SEC confirmation hearing and strongly advocated her nomination.

PROMESA connection: Schumer voted YEA on PROMESA and was a major Senate fundraising and political power broker, although Harry Reid was the formal Senate Minority Leader when PROMESA passed.

Potential conflict/omission question: Did Schumer or his staff communicate with Lew, White, Treasury, SEC, or DOJ about PREPA, Puerto Rico debt, the underwriting banks, B-02949, whistleblower evidence, or PROMESA? The documented appointment relationships do not prove influence over agency decisions, but they identify a concrete communications trail for investigation.

2. Jacob J. Lew

Prior financial relationship: Before returning to government, Lew served as managing director and chief operating officer of two Citigroup business units.

Government role: Lew became Treasury Secretary in February 2013. Treasury later became a principal Administration architect and advocate of the federal Puerto Rico response that became PROMESA.

PREPA/Citigroup overlap: Citigroup/Citibank was not an incidental PREPA participant. Offering and financial records identify Citi as a recurring PREPA underwriter and Citibank as a major revolving-credit provider. The 2013A offering disclosed a $250 million Citibank fuel/power credit facility with approximately $249.1 million outstanding as of June 30, 2013.

Schumer relationship: Schumer personally introduced Lew for Treasury confirmation and endorsed him 'wholeheartedly and without any reservation.' The records reviewed do not establish that Schumer originated Lew's nomination.

Potential conflict/omission question: Did Treasury identify, disclose, or manage Lew's former Citigroup relationship while developing legislation materially affecting Puerto Rico debt and PREPA creditors? What Citi/PREPA exposure was known to Treasury when PROMESA was being designed?

3. Antonio Weiss

Prior financial relationship: Weiss was Global Head of Investment Banking at Lazard.

Government role: President Obama nominated Weiss to a Senate-confirmed Treasury post. After opposition to the nomination, Weiss withdrew and became Counselor to Secretary Lew, a position not requiring Senate confirmation.

PROMESA role: Weiss became a central Treasury official on Puerto Rico and appeared as Treasury's principal witness at the April 13, 2016 PROMESA hearing. Treasury testimony stated that significant progress had been made designing the bill and that Treasury would continue working with the Committee and staff to refine the legislation.

Potential Lazard overlap: Contemporaneous conflict research reported Lazard Asset Management Puerto Rico bond exposure and indirect exposure through funds connected to Puerto Rico creditors. A public recusal campaign concerning Weiss and Puerto Rico occurred in 2015.

Potential conflict/omission question: What Lazard or affiliated Puerto Rico holdings, advisory interests, or creditor relationships existed while Weiss was Treasury's Puerto Rico point person, and what ethics or recusal analysis was performed?

4. Stephen Campbell

Prior financial relationship: Campbell was another former Lazard investment banker.

Government role: Treasury added Campbell to its Puerto Rico debt-crisis team in 2015, placing a second former Lazard banker inside the Treasury group handling Puerto Rico.

Important limitation: The records reviewed do not show that Campbell, unlike Weiss, was nominated for and rejected from a Senate-confirmed position.

Potential conflict/omission question: What Puerto Rico work did Campbell perform, what Lazard relationships remained relevant, and what ethics screening or recusal records exist concerning Lazard, its funds, or Puerto Rico creditors?

5. Adam Chepenik

Government role: Chepenik was a Treasury policy official involved in state/local finance and Puerto Rico matters.

PREPA evidence: The FOIA-produced evidentiary record identifies Chepenik as the author of the opening August 2, 2013 Treasury email to SEC personnel in the 22-page PREPA/Puerto Rico communication. The email discussed municipal-market outflows and volatility and directed SEC personnel to reporting and rating-agency commentary concerning the transaction.

PROMESA continuity: Later professional descriptions identify Chepenik as involved in Treasury's work on distressed municipalities and Puerto Rico, creating institutional continuity between Treasury's 2013 PREPA analysis and the later federal Puerto Rico response.

Material-omission question: Was the 2013 Treasury-to-SEC PREPA analysis included in Treasury's PROMESA briefing books, testimony preparation, or congressional presentations? The public PROMESA presentation reviewed to date does not identify that specific 22-page record.

6. Mary Jo White

Prior financial/legal relationship: White came to the SEC from Debevoise & Plimpton, where she chaired the litigation department. Her private practice included representation of major Wall Street interests.

Schumer relationship: Schumer formally introduced White at her Senate Banking Committee confirmation hearing and strongly endorsed her nomination.

SEC/PREPA timing: White became SEC Chair on April 10, 2013. Approximately four months later, Treasury personnel sent SEC personnel the 22-page PREPA/Puerto Rico communication. During White's tenure, the SEC's PREPA investigative record developed, including Matter B-02949 and related investigative activity described in later-produced records. White remained SEC Chair through PROMESA's enactment in June 2016.

Revolving-door issue: After leaving the SEC in January 2017, White returned to Debevoise. The report does not use an unverified post-SEC compensation figure.

Potential conflict/omission question: What former-client recusals or ethics screens applied to PREPA underwriters or related financial institutions? Who controlled B-02949 where White was recused? What PREPA investigative information was transmitted to Treasury, DOJ, or Congress before PROMESA?

7. Jay Clayton

Prior financial/legal relationship: Clayton spent more than 20 years at Sullivan & Cromwell and was a partner, member of its Management Committee, and co-head of its corporate practice before becoming SEC Chair.

SEC role: Clayton served as SEC Chair from May 2017 through December 2020. He therefore inherited the SEC after the PREPA investigative record had already developed under the prior administration.

PREPA question: The central issue is what happened to Matter B-02949 and related Puerto Rico enforcement decisions during Clayton's tenure, including which officials had decisional authority when ethics or former-client recusals applied.

Post-SEC relationships: Clayton returned to Sullivan & Cromwell as Senior Policy Advisor/Of Counsel and became Lead Independent Director of Apollo Global Management effective March 2021.

Potential conflict/omission question: What ethics screens and recusal records applied to Clayton's former clients and firm in Puerto Rico/PREPA matters, and who made any B-02949 continuation, closure, referral, or non-enforcement decisions during 2017–2020?

8. Gary Gensler

Prior financial relationship: Gensler spent 18 years at Goldman Sachs, became a partner, headed the Media Group, led fixed-income and currency trading in Asia, and became co-head of Finance with responsibility for worldwide Controllers and Treasury functions.

Government role: Before the SEC, Gensler also served as Treasury Under Secretary for Domestic Finance and later chaired the CFTC. He became SEC Chair on April 17, 2021 and served through January 20, 2025.

PREPA/FOIA timing: Gensler's relevance is not the original 2013 issuance or PROMESA's passage. He inherited the historical PREPA investigative record just as FOIA requests and litigation began forcing the SEC to locate and process it. The SEC received Lawless's internal-communications FOIA request in May 2021, roughly one month after Gensler took office.

Potential conflict/omission question: What information concerning B-02949, PREPA, the whistleblower record, and the scope of responsive SEC records reached the Chair's office? What Goldman-related ethics or recusal restrictions applied to Puerto Rico/PREPA matters? The current evidence does not establish that Gensler personally directed the handling of B-02949 or the challenged FOIA/litigation positions.

9. Robert S. Mueller III

Government role: Mueller served as FBI Director until September 4, 2013, placing him in office during the period when Treasury's August 2, 2013 PREPA/Puerto Rico communication was sent to SEC personnel and immediately before the 2013 PREPA bond issuance.

Post-FBI relationship: Mueller joined WilmerHale as a partner in March 2014. WilmerHale publicly describes a major financial-institutions enforcement practice and states that it represented a corporate and investment bank in Puerto Rico regulatory, FINRA, and SEC proceedings arising from the Puerto Rico financial crisis and sales of Puerto Rico closed-end funds.

Important limitation: The presently located public record does not identify the bank in WilmerHale's Puerto Rico matter on the cited practice page and does not establish that Mueller personally worked on that representation.

Potential conflict/omission question: What FBI information concerning PREPA or Puerto Rico securities existed before Mueller left the Bureau, and did Mueller later participate in any WilmerHale matter involving Puerto Rico financial institutions, PREPA underwriters, or related regulatory investigations?

10. James B. Comey

Prior financial relationships: Comey became FBI Director on September 4, 2013. Immediately before that appointment he had served as General Counsel of Bridgewater Associates from 2010 to 2013 and, beginning March 2013, as an independent director of HSBC Holdings and a member of HSBC's Financial System Vulnerabilities Committee.

Confirmation conflict record: At Comey's FBI confirmation hearing, Senator Grassley expressly questioned his Bridgewater and HSBC affiliations. Comey acknowledged that a matter involving a former employer could present a conflict and stated that he would recuse where appropriate.

PREPA timing: Comey assumed FBI leadership during the same month as the 2013 PREPA bond issuance and after Treasury had already transmitted its August 2013 PREPA/Puerto Rico concerns to SEC personnel.

Potential conflict/omission question: What Puerto Rico securities exposure, if any, existed within Bridgewater or HSBC during Comey's tenure, what recusal screens applied, and what PREPA/Puerto Rico referrals or complaints reached the FBI during 2013–2017? The current public record establishes the former-employer relationships and recusal issue, not a PREPA-specific conflict.

11. Eric H. Holder Jr.

Prior and post-government relationship: Holder was a partner at Covington & Burling from 2001 to 2009, served as Attorney General from February 2009 through April 24, 2015, and returned to Covington after leaving DOJ.

Financial-institution overlap: Contemporaneous reporting identified Covington clients during the relevant era as including Bank of America, Citigroup, JPMorgan Chase, and Wells Fargo—institutions overlapping the broader PREPA/Puerto Rico banking universe examined in this report.

PREPA timing: Holder led DOJ during the 2013 PREPA issuance, Treasury's August 2013 communication with the SEC, and the early period of the federal PREPA investigative record.

Countervailing evidence: Holder's DOJ also brought major enforcement actions and settlements against large financial institutions, including JPMorgan and Citigroup. Prior-firm client overlap therefore cannot be treated as evidence that Holder protected those banks.

Potential conflict/omission question: What PREPA or Puerto Rico information reached the Attorney General's Office from SEC, Treasury, FBI, Antitrust, or other DOJ components during 2013–April 2015, and what conflict screens applied where Covington clients were implicated?

12. Loretta E. Lynch

Prior professional relationship: Lynch was a Hogan & Hartson partner in private practice and served on the Board of the Federal Reserve Bank of New York from 2003 through 2005. The New York Fed's district includes Puerto Rico.

Government role: Lynch became Attorney General on April 27, 2015 and served through January 20, 2017, covering the period immediately before and during PROMESA.

Bank-enforcement record: As U.S. Attorney and later as Attorney General, Lynch's record included significant bank prosecutions and investigations, including matters involving Citigroup and HSBC. That record cuts against treating her financial-sector connections as evidence of protection.

Post-government relationship: In 2019 Lynch joined Paul, Weiss as a partner. Paul, Weiss has a substantial financial-services practice and publicly identifies representations of Citigroup and numerous other large financial institutions. This post-government relationship occurred after PROMESA and is relevant as revolving-door context, not proof of conduct while Attorney General.

Potential conflict/omission question: What did Lynch's DOJ know about PREPA, B-02949, SEC-DOJ communications, HR 1049, and whistleblower evidence while Treasury was presenting PROMESA to Congress? For Lynch, the strongest issue is governmental knowledge and omission during PROMESA, not a presently established private-sector PREPA conflict.

13. Jefferson B. Sessions III

Government role: Sessions served as Attorney General from February 9, 2017 through November 7, 2018, after PROMESA's enactment and during the early Title III restructuring period.

Professional background: Sessions' career before becoming Attorney General was predominantly public service—U.S. Attorney, Alabama Attorney General, and U.S. Senator—with earlier Alabama private practice. The research conducted for this report has not identified a comparable Wall Street revolving-door relationship to the PREPA banking network.

PREPA relevance: Sessions inherited DOJ after the PREPA investigative and interagency record had already developed and as PROMESA implementation and restructuring litigation were underway.

Potential omission question: What PREPA referrals, SEC-DOJ communications, investigative materials, or requests for federal action remained open or were reviewed during Sessions' tenure? The present evidence supports an institutional-knowledge inquiry, not a personal financial-conflict allegation.

14. Christopher A. Wray

Prior financial/legal relationship: Wray spent roughly a decade in private practice at King & Spalding before becoming FBI Director in August 2017. Ethics disclosures and contemporaneous reporting identified personal legal work for major corporations and financial institutions including Wells Fargo and Credit Suisse.

Compensation and recusal: Contemporary reporting stated that Wray received approximately $9.2 million as his King & Spalding partnership share before entering the FBI and that he would be required to step aside for a period from matters involving former clients and the firm.

PREPA overlap: Wells Fargo was among financial institutions participating in the PREPA/Puerto Rico financial market examined in this report. The existence of Wray's Wells Fargo representation therefore warrants a recipient-specific ethics inquiry, but the current record does not establish that his work for Wells Fargo concerned Puerto Rico or PREPA.

Government role: Wray became FBI Director on August 2, 2017, after PROMESA but during the period in which PREPA Title III proceedings, federal complaints, and requests for investigation continued.

Potential conflict/omission question: Did FBI headquarters or field offices possess PREPA/Puerto Rico referrals or complaints during Wray's tenure, and if any matter involved Wells Fargo, Credit Suisse, King & Spalding, or another former client, what recusal and reassignment procedures applied?

15. FBI / Attorney General Pattern

Individual	Government role	Prior/post private relationship	PREPA/Puerto Rico intersection	Assessment
Mueller	FBI Director to Sept. 2013	WilmerHale after FBI	Firm later handled Puerto Rico financial-crisis bank matter	Further research; personal involvement not established
Comey	FBI Director 2013–2017	Bridgewater; HSBC board	Took office during 2013 PREPA period	Recusal/knowledge inquiry warranted
Holder	Attorney General 2009–2015	Covington before and after DOJ	Covington bank-client overlap; DOJ during 2013 PREPA period	Conflict-screen + knowledge inquiry; countervailing bank enforcement
Lynch	Attorney General 2015–2017	Hogan; NY Fed board; later Paul Weiss	AG during PROMESA; NY Fed jurisdiction	Strong omission/knowledge

			includes Puerto Rico	inquiry; personal PREPA conflict not established
Sessions	Attorney General 2017–2018	Predominantly public-service background	Post-PROMESA DOJ leadership	Institutional knowledge inquiry; no comparable financial conflict found
Wray	FBI Director from Aug. 2017	King & Spalding; Wells Fargo/Credit Suisse work	Post-PROMESA FBI; former Wells Fargo client	Ethics/recusal + FBI referral inquiry warranted

16. Combined Focused Pattern

Individual	Prior relationship	Government role	PREPA/PROMESA intersection	Primary unresolved question
Schumer	Major Wall Street donor relationships	Senior Senator / political power broker	Supported Lew and White; voted for PROMESA	Communications with Treasury/SEC/DOJ?
Lew	Citigroup executive	Treasury Secretary	Treasury helped develop PROMESA	Citi conflict disclosure/recusal?
Weiss	Lazard investment-banking chief	Treasury Counselor	Principal Puerto Rico/PROMESA official	Lazard exposure and ethics review?
Campbell	Lazard banker	Treasury Puerto Rico team	Worked on Puerto Rico response	Lazard conflicts screened?
Chepenik	Treasury state/local finance	Treasury policy official	2013 Treasury-to-SEC PREPA email; later Puerto Rico role	Why not identified to Congress?
White	Debevoise / Wall Street clients	SEC Chair	SEC receives 2013 warning; B-02949 develops; PROMESA passes	Former-client recusals and disclosure?
Clayton	Sullivan & Cromwell	SEC Chair	Inherited PREPA investigative record	What happened to B-02949?
Gensler	Goldman Sachs	SEC Chair	FOIA/litigation era exposes historical record	What reached Chair's office; ethics screens?

17. Conclusion

The recurring pattern is not sufficient by itself to establish corruption. It is sufficient to identify a focused documentary inquiry. Multiple officials occupying positions capable of influencing Puerto Rico policy, securities enforcement, or PROMESA had substantial prior professional relationships with financial institutions or firms connected to the financial markets affected by Puerto Rico's debt crisis. The core questions are whether those relationships were disclosed and managed, who exercised authority when recusals applied, and whether Congress received the materially relevant PREPA information already held within Treasury and the SEC.

Source Notes

- U.S. Treasury biography of Jacob J. Lew — former managing director/COO of two Citigroup business units.
- U.S. Treasury testimony of Antonio Weiss before House Natural Resources, Apr. 13, 2016.
- SEC biography of Mary Jo White — SEC Chair Apr. 2013–Jan. 2017; former Debevoise litigation chair.
- Senate Banking Committee confirmation hearing for Mary Jo White — formal introduction by Senator Schumer.

- SEC biography of Jay Clayton — SEC Chair May 2017–Dec. 2020; former Sullivan & Cromwell partner and management committee member.
- Apollo SEC filing/announcement — Clayton appointed Lead Independent Director effective Mar. 1, 2021 and returning to Sullivan & Cromwell.
- SEC biography of Gary Gensler — SEC Chair Apr. 2021–Jan. 2025; 18 years at Goldman Sachs and senior Treasury experience.
- FOIA-produced Aug. 2, 2013 Treasury-to-SEC PREPA communication in the Lawless evidentiary archive, opening email from Adam Chepenik.
- SEC FOIA correspondence dated Sept. 24, 2021 concerning Lawless Request No. 21-00159-FOPA.

Additional Sources — FBI Directors and Attorneys General

- FBI biography of James B. Comey — FBI Director Sept. 4, 2013–May 9, 2017; Bridgewater general counsel before FBI.
- HSBC Holdings announcement, Jan. 30, 2013 — Comey appointed independent director and member of Financial System Vulnerabilities Committee effective Mar. 4, 2013.
- Senate Judiciary confirmation hearing for Comey — questions concerning Bridgewater/HSBC conflicts and recusal.
- DOJ biography of Eric H. Holder Jr. — Attorney General 2009–2015; Covington partner before DOJ and return to Covington afterward.
- Covington biography of Holder — partner 2001–2009 and senior counsel after DOJ.
- DOJ biography of Loretta E. Lynch — Attorney General 2015–2017; Hogan & Hartson partner; New York Fed board 2003–2005; later Paul Weiss.
- Paul, Weiss biography/firm announcement for Lynch — partner from 2019; financial-services and regulatory practice.
- DOJ biography of Jeff Sessions — Attorney General 2017–2018; predominantly public-service career.
- FBI announcement of Christopher Wray's Aug. 2, 2017 swearing-in.
- 2017 ethics-reporting on Wray — King & Spalding; Wells Fargo and Credit Suisse among disclosed clients; approximately $9.2 million partnership share.
- WilmerHale announcement — Robert Mueller joined the firm in March 2014 after FBI service.
- WilmerHale Banking Controversy / Securities Enforcement practice pages — firm representation of a corporate and investment bank in proceedings arising from the Puerto Rico financial crisis; no personal Mueller involvement established by the cited page.